

26STCV02279 26STCV02279

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Case Number: 26STCV02279 Hearing Date: July 2, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 2, 2026

Case Name: Tajook v. Hyundai Motor

America

Case No.: 26STCV02279 Matter: Motion to Compel Arbitration and Stay Proceedings

Moving

Party: Defendant Hyundai Motor

America

Responding Party: Plaintiff Maryam Tajook

Tentative

Ruling: Defendant Hyundai Motor

America's motion is granted.

On January 22,

2026, Plaintiff Maryam Tajook ("Plaintiff") brought this action against Defendant Hyundai Motor America ("Defendant") and Does 1 to 100. The Complaint alleges three causes of action for: (1) breach of implied warranty of merchantability under the Song-Beverly Act; (2) breach of express written warranty under the Song-Beverly Act; and (3) violation of the Song-Beverly Warranty Act section 1793.2. Plaintiff alleges that on February 9, 2022, Plaintiff leased a 2022 Hyundai

Tucson, vehicle identification number 5NMJB3AE0NH069272 ("Subject Vehicle").

Defendant

moves to compel arbitration of Plaintiff's claims pursuant to the arbitration agreement that Plaintiff accepted when enrolling in Bluelink through the Hyundai Connected Services Agreement ("CSA"), and the Arbitration Agreement in the New Vehicle Limited Warranty found in the Owner's Handbook ("NVLW"). Plaintiff opposes.

Legal Standard

Under both

the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) Code of Civil Procedure section 1281.2 authorizes the court to order arbitration of a case if it finds the parties agreed to arbitrate that dispute, "and that a party to the agreement refuses to arbitrate that controversy." (Code Civ. Proc., § 1281.2, subd. (a).) Arbitration agreements should be liberally interpreted and ordered unless the agreement clearly does not apply to the dispute in question. (*Weeks v. Crow* (1980) 113 Cal.App.3d 350, 353; *Segal v. Silberstein* (2007) 156 Cal.App.4th 627, 633.)

The party

moving to compel arbitration has the initial burden to (1) affirmatively admit and allege the existence of a written arbitration agreement, and (2) prove the existence of that agreement by a preponderance of the evidence. (*Rosenthal v. Great W. Fin. Sec. Corp.*, 14 Cal. 4th 394, 413.) Once this is met, the burden shifts to the responding party to prove that the agreement is unenforceable by a preponderance of the evidence. (*Ibid.*)

"Doubts as

to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (California Correctional Peace Officers Assn. v. State, (2006) 142 Cal.App.4th 198, 205.)

Request for Judicial Notice

Plaintiff

requests that the Court take judicial notice of the published and maintained list by the Arbitration Certification Program of the California Department of Consumer Affairs. The Court grants Plaintiff's request for judicial notice pursuant to Evidence Code section 452, subdivision (c).

Defendant

requests that the Court take judicial notice of Plaintiff's Complaint. The Court grants Defendant's request for judicial notice pursuant to Evidence Code section 452, subdivision (d).

Analysis

Defendant

moves to compel arbitration of Plaintiff's claims against it and stay the matter pending arbitration.

Existence

of a Valid Agreement

Defendant seeks

to compel arbitration based on the arbitrations found in the CSA and in the NVLW.

CSA

Defendant

contends that Plaintiff agreed to arbitrate his present claims when he accepted the Terms and Services that contained an arbitration agreement in the optional CSA. The arbitration provision in the CSA states:

Hyundai and you

agree to arbitrate any and all disputes and claims between

us arising out of or

relating to this Agreement, Connected Services, Connected

Services Systems,

Service Plans, the Vehicle, use of the sites, or products, services, or programs you purchase, enroll in or seek product/service support for, whether you are a Visitor or Customer, via the sites or through mobile application, except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law. . .

The agreement to arbitrate

otherwise includes, but is not limited to: claims based in contract, tort, warranty, statute, fraud, misrepresentation or any other legal theory. . .

(Rao Decl., Ex. 2, § 15(a) (emphasis added).)

Plaintiff

argues that the provision is not enforceable under the CSA because Plaintiff's claims are based on the Song-Beverly Act and the CSA does not reach Plaintiff's claims against Defendant. The Court agrees. The terms of the CSA limited it to the specific agreement, making it so that a reasonable interpretation of the provision would not include Plaintiff's claims under the Song-Beverly Act. Also, the CSA states, "YOUR VEHICLE'S LIMITED WARRANTY does not cover the Connected Services or the wireless service, which is provided to you on an "as is" and "where is" basis, without any warranty of any kind, express or implied." (Rao Decl., Ex. B, § 11.) The Court does not find that the CSA is broad enough to encompass claims beyond the "Connected Services."

Thus, the

Court finds that the CSA is not an enforceable arbitration agreement between the parties. The Court will not address the parties' other arguments regarding the CSA.

NVLW

Defendant

also argues that Plaintiff's claims are subject to arbitration under the provisions of the NVLW in the Owner's Handbook.

The

arbitration provision states:

If you purchased or

leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law.

(Ameripor Decl., Ex. 3, p. 12 (emphasis added).)

To

establish the existence of an agreement to arbitrate, it is sufficient for the defendant to provide a copy of the arbitration agreement or state the paragraph verbatim. (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 218 (Condee); Cal. Rules of Court, Rule 3.1330.) At this stage of the analysis, the court does not need to make “an evidentiary determination of its validity.” (Condee, supra, 88 Cal.App.4th at p. 218–219.)

Plaintiff

then argues that the arbitration clause is unenforceable because Plaintiff did not assent to it. ““An offer is the manifestation of willingness to enter into a bargain, so made as to justify another person in understanding that his assent to that bargain is invited and will conclude it.” [Citations.]” (Donovan v. RRL Corp. (2001) 26 Cal.4th 261, 271, as modified (Sept. 12, 2001).) Plaintiff argues that Defendant fails to meet its burden because it does not attach a signed arbitration agreement. (See Ramirez v. Golden Queen Mining Co., LLC (2024) 102 Cal.App.5th 821, 831, as modified (June 11, 2024).)

In

opposition, Defendant argues that a lack of a signature is not dispositive of the validity of the agreement to arbitrate. Defendant cites to *Boucher*, in which the Court states that “[a] party may be estopped from asserting that the lack of his signature on a written contract precludes enforcement of the contract’s arbitration clause when he has consistently maintained that other provisions of the same contract should be enforced to benefit him. [¶] A nonsignatory is estopped from refusing to comply with an arbitration clause ‘when it receives a “direct benefit” from a contract containing an arbitration clause.’ [Citations.]” (*Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 269.) Defendant contends that Plaintiff is equitably estopped from arguing that the lack of a signature warrants the Agreement unenforceable because Plaintiff seeks to enforce his rights under the express warranty, which contains the arbitration agreement. (See Compl., ¶¶ 14, 19, 36-40.)

Plaintiff

then argues that *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279 is applicable in which the plaintiff did not expressly or impliedly assent to the arbitration agreement. The issue is that Plaintiff’s claims are based on the warranty by Defendant—Plaintiff cannot seek to enforce the terms of the warranty while seeking not to enforce its arbitration agreement. In the Complaint, Plaintiff alleges that Plaintiff received an express written warranty in connection with the lease for the Subject Vehicle. (Compl., ¶ 14; see also Compl., ¶¶ 15, 36-41.)

Plaintiff

disputes the applicability of equitable estoppel because Plaintiff contends that the claims against Defendant are statutory claims and not independent of the express warranty. “‘The fundamental point’ is that a party is ‘not entitled to make use of [a contract containing an arbitration provision] as long as it worked to [the party’s] advantage, then attempt to avoid its application in defining the forum in which [the] dispute ... should be resolved.’” (*Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196, 1207, review dismissed, cause remanded (Cal. 2025) 338 Cal.Rptr.3d 438 (*Ballesteros*)). Plaintiff argues that *Ballesteros* and *Ford Motor Warranty Cases* support Plaintiff’s argument, but the Court is not persuaded. As addressed above, the Complaint alleges and relies on the express warranty provided by Defendant. Additionally, both *Ballesteros* and *Ford Motor Warranty Cases* address

equitable estoppel in the context of an arbitration agreement found in a sales contract between the plaintiff and the dealer/retailer, where the manufacturer is not a signatory to the sales contract. (See *Ballesteros*, supra, 109 Cal.App.5th at p. 1208; *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1130.) Here, the Agreement in dispute is not found in a sales contract. Thus, equitable estoppel applies.

Plaintiff

contends that pursuant to AB 1755, Defendant has waived its right to compel arbitration because it has opted in to the statutory dispute-resolution procedures of Code of Civil Procedure sections 871.20 through 871.30. (Opp., 12:3-6.) Plaintiff relies on *Quach* to support Plaintiff's argument. It is unclear to the Court how *Quach* supports Plaintiff's argument that Defendant has waived its right to arbitrate under the agreement. In *Quach*, the court held that the opposing party is no longer required to make a showing of prejudice to establish waiver. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 572.) The Court is not persuaded by Plaintiff's argument that Defendant has waived its right to seek arbitration. Plaintiff does not provide the Court with legal authority to support the claim made. Thus, the Court finds Plaintiff's position unsupported.

Therefore,

the NVLW is a valid and enforceable agreement for Plaintiff to arbitrate Plaintiff's claims.

Federal

Arbitration Agreement

Defendant argues

the Federal Arbitration Act (FAA) governs the Agreement. The Court agrees. The Agreement expressly states, "[t]his agreement evidences a transaction involving interstate commerce and shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16." (*Ameripour Decl.*, Ex. 3., p. 14.)

Thus, the FAA applies.

Unconscionability

Plaintiff claims that the arbitration agreement is procedurally and substantively unconscionable.

“‘[U]nconscionability

has both a 'procedural' and a 'substantive' element,” the former focusing on “‘oppression’” or “‘surprise’” due to unequal bargaining power, the latter on “‘overly harsh’” or “‘one-sided’” results. [Citation.] “The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” [Citation.] But they need not be present in the same degree. “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.” [Citation.] In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114.)

Plaintiff

argues that the Agreement is procedurally unconscionable because it is presented and inside a glove box rather than a separate negotiation. (Opp., 13:3-5.) The Court is persuaded by Plaintiff’s argument and finds that there is minimal procedural unconscionability. However, Plaintiff makes no argument that the Agreement is substantively unconscionable. Plaintiff also notes that unconscionability requires both procedural and substantive unconscionability. (Opp., 13:1-3; Stirlen v. Supercuts, Inc. (1997) 51 Cal.App.4th 1519, 1532, as modified (Feb. 10, 1997).)

Therefore, the agreement is not unconscionable.

Costs

Plaintiff

requests that, if the parties are ordered to arbitration, Defendant be required to bear the costs. “The Legislature in enacting Code of Civil Procedure section 1284.3 “did not adopt the Armendariz categorical approach and direct that all administrative fees be paid by nonconsumer parties without regard to the size of the costs or the wealth of the consumer.... [T]he Legislature did adopt an ability-to-pay approach, which, though limited in this statute to indigents, provides direction for a rule applicable to all

consumers faced with arbitral forum fees that are prohibitively high.” (Sanchez v. Valencia Holding Co., LLC (2015) 61 Cal.4th 899, 919.) The Agreement states that “[Defendant] will pay all fees for any arbitration except for the initial filing fee of \$250 for JAMS or \$200 for AAA.” (Ameripour Decl., Ex. 3, p. 14 (emphasis added).) Plaintiff has not presented the Court with any evidence that shows Plaintiff is unable to pay the initial filing fee.

Thus, the
Court denies Plaintiff’s request.

Stay of
Proceedings

Code of
Civil Procedure section 1281.4 provides that if the court has
ordered the arbitration of a controversy, it “shall, upon motion of a party to
such action or proceeding, stay the action or proceeding until an arbitration
is had in accordance with the order to arbitrate or until such earlier time as
the court specifies.”² (Code Civ. Proc., § 1281.4.)

²

Thus, the Court
stays this action pending the conclusion of the arbitration
proceedings.^{2 2}

Conclusion

Defendant’s
motion to compel arbitration is granted.

The Court
denies Plaintiff’s requests for costs.

The Court
stays this action pending the conclusion of the arbitration process.